

Plaintiff is not the “prevailing party” such that he is entitled to fees. Code of Civil Procedure section 1032 defines the prevailing party as follows:

“ ‘Prevailing party’ includes the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the ‘prevailing party’ shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not and, if allowed, may apportion costs between the parties on the same or adverse sides pursuant to rules adopted under Section 1034.” (Code Civ. Proc., § 1032, subd. (a)(4).)

Here, no party has obtained a net monetary recovery and there have been no judgments in favor of Plaintiff on the merits of the causes of action alleged related to Plaintiff’s current action, Case No. 2021-01231249.

Plaintiff spends much of his motion arguing that he is entitled to class action fees. The operative Complaint at issue in this case (Case No. 2021-01231249) has not been brought or certified as a class action. As such, Plaintiff is not entitled to any fees that only apply in class action cases.

Moreover, Plaintiff is not entitled to recover fees related to his appeal in Plaintiff’s current action, Case No. 2021-01231249. The Court of Appeal expressly ordered: “In the interest of justice, the parties shall bear their own costs on appeal. (Cal. Rules of Court, rule 8.278(a)(5).)” (ROA 196.)

Plaintiff also appears to seek attorney fees pursuant to contract. “[I]n deciding whether there is a ‘party prevailing on the contract,’ the trial court is to compare the relief awarded on the contract claim or claims with the parties’ demands on those same claims and their litigation objectives as disclosed by the pleadings, trial briefs, opening statements, and similar sources.” (*Hsu v. Abbata* (1995) 9 Cal.4th 863, 876.) “The prevailing party determination is to be made only upon final resolution of the contract claims and only by ‘a comparison of the extent to which each party ha[s] succeeded and failed to succeed in its contentions.’ ” (*Ibid.*) Here, no relief has been awarded regarding Plaintiff’s contract claims in this case (Case No. 2021-01231249) and therefore Plaintiff is not entitled to attorney fees pursuant to contract at this time.

In sum, the Motion for Attorney Fees is **DENIED**.

Clerk to give notice.

2. 30-2025-01519929

Baloy vs. General Motors

**1. Motion for Attorney Fees
2. Order to Show Cause re: Dismissal on Settled Case**

Plaintiff Dennis Baloy (“Plaintiff”) moves for an order awarding him attorney fees pursuant to Civil Code section 1794(d), in the amount of \$37,045.16 against defendant General Motors, LLC (“Defendant”).

Civil Code section 1794(d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” “As the plain wording of section 1794, subdivision (d) makes clear, the